



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Law of the Board of Grievances

Royal Decree No. M/78
October 1, 2007

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa



Law of the Board of Grievances

Article 1

The Board of Grievances is an independent administrative judicial body reporting directly to the King and its seat shall be the city of Riyadh.

The Board's judges and judgments shall enjoy the guarantees provided for in the Law of the Judiciary and they shall observe the duties provided for therein.

Article 2

The Board of Grievances shall consist of a president of the rank "Minister", one or more vice presidents, and a sufficient number of judges, in addition to the necessary number of researchers, specialists, administrators, and the like.

Article 3

The Board's vice presidents are appointed by royal order from among those satisfying the requirements for assuming the rank of Chief Judge of an Appeals Court.

Article 4

A council named the "Administrative Judicial Council" shall be established at the Board and it shall consist of the following:

- President of the Board of Grievances, chairman
- President of the High Administrative Court, member
- The most senior vice president of the Board, member
- Four judges of the rank of an appeals judge to be appointed by royal order, members

Article 5

Without prejudice to the jurisdictions of the Administrative Judicial Council provided for in this Law, the Administrative Judicial Council shall assume, in relation to the Board of Grievances, the powers of the Supreme Judicial Council provided for in the Law of the Judiciary. The Chairman of the Administrative Judicial Council shall have, in relation to the Board of Grievances, the powers of the Chairman of the Supreme Judicial Council.

Article 6

The Administrative Judicial Council, presided over by its Chairman, shall convene at least once every other month and whenever necessary. Its session shall not be valid unless attended by at least five of its members, and its decisions shall be issued by majority vote of the Council. In the event of the absence of the Chairman of the Council, the Chairman of the High Administrative Court shall act on his behalf.



Article 7

The Council shall have a general secretariat, and the secretary general shall be selected by the Council from among the judges.

Article 8

Courts of the Board of Grievances shall consist of the following:

1. High Administrative Court.
2. Administrative Courts of Appeal.
3. Administrative Courts.

Administrative courts of appeal shall consist of a chief judge and a sufficient number of judges whose rank shall not be less than the rank of an appeals judge.

Administrative courts shall consist of a chief judge and a sufficient number of judges.

The Administrative Judicial Council may establish other specialized courts subject to the approval of the King.

Article 9

Courts shall exercise their jurisdictions through specialized panels formed as follows:

1. Panels of the High Administrative Court, three judges.
2. Panels of the Administrative Courts of Appeal, three judges.
3. Panels of the Administrative Courts, three judges, and they may consist of one judge.

Panels of the Administrative Courts of Appeal and the Administrative Courts shall be formed by the Administrative Judicial Council pursuant to a recommendation by the courts' chief judges.

Article 10

1. The seat of the High Administrative Court shall be the city of Riyadh and it shall be composed of a chief judge and a sufficient number of judges of the rank of Chief Judge of an Appeals Court.
2. The Chief Judge of the High Administrative Court shall be appointed by royal order; his rank shall be that of "Minister"; and his service may not be terminated except by royal order. He shall satisfy the requirements for the rank of Chief Judge of an Appeals Court. In his absence, the most senior judge shall act on his behalf. Members of the High Administrative Court shall be appointed by royal order pursuant to a recommendation by the Administrative Judicial Council.
3. The High Administrative Court shall have a general panel presided over by the Chief Judge of the court and the membership of all its judges. In his absence, the most senior of its judges shall act on his behalf. The panel's meeting shall be presided over by the chief judge or whoever acts on his behalf. Its session shall not be valid unless attended by at least two thirds of its members, including the chief judge or his designee. Its decisions shall be issued by majority vote of its members.
4. If a High Administrative Court panel, when reviewing an appeal, decides to depart from a precedent established in a previous judgment rendered by it or by another court panel, it shall bring the appeal before the chairman of the court to refer it to the general panel of the court to decide it.



Article 11

The High Administrative Court shall have jurisdiction to review appeals against the judgments of administrative courts of appeals if the grounds of appeal are any of the following:

- a) Violations of the provisions of Sharia or laws not inconsistent therewith or errors in the application or interpretation thereof, including violations of precedents established in judgments rendered by the High Administrative Court.
- b) That the judgement is rendered by an incompetent court.
- c) That the judgement is rendered by a court not constituted in accordance with the law.
- d) An error in characterizing the incident or in describing it.
- e) Deciding a dispute in contradiction with another judgment previously rendered in connection with the litigants.
- f) Conflicts of jurisdiction among the Board's courts.

Article 12

Administrative courts of appeals shall be entrusted with reviewing appealable judgments rendered by administrative courts and shall decide after hearing the litigants in accordance with legal procedures.

Article 13

Administrative courts shall have jurisdiction to decide the following:

- a) Cases relating to the rights provided for in civil service, military service, and retirement laws for employees of the Government and entities with an independent corporate personality or their heirs and other beneficiaries.
- b) Cases for revocation of final administrative decisions issued by persons concerned when the appeal is based on grounds of lack of jurisdiction, defect in form or cause, violation of laws and regulations, errors in application or interpretation thereof, or the abuse of power, including disciplinary decisions and decisions issued by quasi-judicial committees and disciplinary boards as well as decisions issued by public benefit associations – and the like – relating to their activities. The administrative authority's refusal or denial to make a decision required to be made thereby in accordance with the laws and regulations shall be deemed an administrative decisions.
- c) Tort cases initiated by the persons concerned against the administrative authority's decisions or actions.
- d) Cases related to contracts to which the administrative authority is party.
- e) Disciplinary cases filed by the competent authority.
- f) Other administrative disputes.
- g) Requests for execution of foreign judgments and arbitral awards.

Article 14

Courts of the Board of Grievances may not review cases related to sovereign acts, nor appeals against judgments rendered by courts– not subject to this Law– within their jurisdiction, or against decisions issued by the Supreme Judicial Council and the Administrative Judicial Council.



Article 15

Without prejudice to the provision of Article 27 of the Law of the Judiciary, if a case is filed for the same subject matter before one of the Board's courts and before any other authority having jurisdiction to decide certain disputes, and if both the Board's court and the other authority insist on reviewing the case or both decline to do so, a request for designating the competent body shall be submitted to the Conflict of Jurisdiction Committee, which shall be composed of three members: a member from the High Administrative Court to be named by the Chief Judge of the Court, a member from the other authority to be named by the head of said authority, and a member from the Administrative Judicial Council to be named by the Chairman of the Council who shall chair this Committee. Said Committee shall also have the power to decide disputes arising in relation to the execution of two contradicting final judgments, one of them rendered by a court of the Board and the other by the other authority. It shall decide these cases in accordance with the provisions and procedures provided for in the Law of the Judiciary.

Article 16

Ranks of judges of the Board are those provided for in the Law of the Judiciary. Board judges shall be treated as their counterparts in the Law of the Judiciary with respect to salaries, allowances, rewards, and benefits.

Article 17

Appointment, promotion, transfer, assignment, training, and secondment of Board judges shall be in accordance with the procedures specified in the Law of the Judiciary as well as the approval of their leaves, inspection of their work, discipline, removal from office, and termination of service.

Article 18

Without prejudice to the provisions provided for in this Law, the President of the Board shall be in charge of administrative and financial supervision of the Board and he shall have the powers of a minister as provided for in the Law of the Judiciary and its implementing regulations and decisions, regarding the Board's employees. He shall be the authority on matters issued by the Board, in this respect, to ministries and other bodies.

Article 19

Without prejudice to the provision of Article 6 of this Law, vice presidents shall carry out the duties entrusted to them by the President. In case of his absence or if his position becomes vacant, the most senior of the vice presidents shall assume the position of the President.

Article 20

At the end of each year, the Administrative Judicial Council shall prepare a comprehensive report on the Board's work, including achievements, impediments, and recommendations. The President of the Board shall bring said report before the King.



Article 21

An office for technical affairs shall be established at the Board. It shall be composed of a head and a number of judges, specialists, and researchers. The office shall be in charge of providing opinions, conducting research, studies, and other matters requested by the President of the Board. At the end of each year, the office shall classify the judgments rendered by the courts of the Board, then print and publish them in volumes, and a copy thereof shall be submitted along with the report.

Article 22

1. Without prejudice to the provisions of this Law, the Board's employees – other than judges – shall be governed by the Civil Service Law. The employees of each court shall be under the supervision of their administrative head, and all of them shall be under the supervision of the chief judge of the court.
2. Without prejudice to the provisions of the Civil Service Law, a person appointed as an assistant to the judiciary shall pass an examination, the procedures and requirements of which shall be determined pursuant to a decision by the Administrative Judicial Council

Article 23

All appointments and promotions in the judiciary at the Board shall be effected within the appropriations made in the budget and the provisions thereof.

Article 24

As an exception to the provision of this Law, any judge qualified to hold the rank of an appeals judge may, during the five years following this Law's entry into force, be assigned to assume the duties of the rank of Chief Judge of a Court of Appeals.

Article 25

The Law of Pleadings before the Board of Grievances shall specify the rules of pleadings and procedures before it.

Article 26

This Law shall supersede the Law of the Board of Grievances issued by Royal Decree No. (M/51) dated 17/7/1402 H.



Appendix

Amendments

May 7, 2020 (Ramadan 14, 1441H)

Royal Decree No. M/126 provides for the following:

- Amending Article 14 by adding the phrase "and the Public Prosecution Board" to read as follows:

"Courts of the Board of Grievances may not review cases related to sovereign acts, nor appeals against judgments rendered by courts– not subject to this Law– within their jurisdiction, or against decisions issued by the Supreme Judicial Council, the Administrative Judicial Council, and the Public Prosecution Board".

February 16, 2025 (Sha'ban 17, 1446H)

Royal Decree No. M/180 provides for the following:

- Amending Article 4 to read as follows:

"A council named the "Administrative Judicial Council" shall be established at the Board and it shall consist of the following:

1. President of the Board of Grievances, chairman.
2. President of the High Administrative Court, member.
3. The most senior vice president of the Board, member.
4. Four judges who satisfy the conditions required for an appeals judge, members.
5. Two specialists with expertise, members.

Members mentioned in (4) and (5) above shall be appointed by a royal order for a term of four renewable years. Remuneration and benefits of the Council members shall be specified by a royal order".